

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine White	Team: Squad #13	CCRB Case #: 202207107	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 10/19/2022 6:05 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/19/2024	Precinct: 76
Date/Time CV Reported Fri, 10/21/2022 1:12 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/21/2022 1:12 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. DT3 Jonathan Martinez	03258	953059	INT FIO PRG
3. SGT Daniel Conforti	01237	940995	ESU
4. DTS Michael Black	04128	938070	ESU
5. DTS James Seery	05483	931985	ESU
6. DTS Terry Avent	01029	932280	ESU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Avinash Patel	05322	940551	INT FIO PRG
2. DI Tony Brown	00000	936249	077 PCT
3. SGT Daniel Marussich	04599	938954	INT FIO PRG
4. DT3 Brian Feeley	02726	944550	INT FIO PRG
5. DT3 Matthew Fagan	02752	954785	INT FIO PRG
6. PO Christian Lopez	24864	955083	INT FIO PRG
7. PO Koren Stewart	04471	947518	CAB COD
8. PO Jose Albarracin	14046	957320	077 PCT
9. DTS Joseph Bucchignano	01460	932373	ESU
10. DTS Marko Sikiric	04016	946251	ESU
11. DTS David Fekety	07644	932625	ESU
12. DTS Matthew Hemberger	03564	949092	ESU

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jonathan Martinez	Abuse: Detective Jonathan Martinez entered § 87(2)(b) in Brooklyn.	A . Within NYPD Guidelines
B . DT3 Jonathan Martinez	Abuse: Detective Jonathan Martinez searched § 87(2)(b) in Brooklyn.	B . Within NYPD Guidelines
C . SGT Daniel Conforti	Discourtesy: Sergeant Daniel Conforti acted discourteously toward § 87(2)(b)	C . Substantiated
D . SGT Daniel Conforti	Abuse: Sergeant Daniel Conforti damaged § 87(2)(b) s property.	D . Unfounded
E . DTS Michael Black	Discourtesy: Detective Michael Black spoke discourteously to § 87(2)(b)	E . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
F . DTS Michael Black	Force: Detective Michael Black used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . DTS Terry Avent	Force: Detective Terry Avent used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . SGT Daniel Conforti	Force: Sergeant Daniel Conforti used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . SGT Daniel Conforti	Force: Sergeant Daniel Conforti used a chokehold against § 87(2)(b)	I . Unable to Determine
J . SGT Daniel Conforti	Force: Sergeant Daniel Conforti restricted § 87(2)(b)'s breathing.	J . Unable to Determine
K . SGT Daniel Conforti	Discourtesy: Sergeant Daniel Conforti spoke discourteously to § 87(2)(b)	K . Within NYPD Guidelines
L . DTS Terry Avent	Discourtesy: Detective Terry Avent spoke discourteously to § 87(2)(b)	L . Substantiated
M . DTS James Seery	Discourtesy: Detective James Seery acted discourteously toward § 87(2)(b)	M . Miscellaneous - Subject Retired
N . An officer	Abuse: An officer searched § 87(2)(b)'s recording device.	N . Unfounded
O . An officer	Abuse: An officer searched § 87(2)(b)'s recording device.	O . Unfounded

Case Summary

On October 21, 2022, § 87(2)(b) filed this complaint on behalf of himself, his brother § 87(2)(b) and his mother § 87(2)(b) via the CCRB's website (**BR01**).

On October 19, 2022, at 6:05 a.m., Detective Jonathan Martinez of the Intelligence Bureau Field Intelligence Officer program (INT FIO) executed a search warrant for a firearm at § 87(2)(b) and his family's residence, § 87(2)(b) in Brooklyn (**Allegations A and B: Abuse of Authority – Premises Entered, Search of Premises; within NYPD guidelines**). Sergeant Daniel Conforti of the Emergency Services Unit (ESU) removed § 87(2)(b) Ring camera doorbell from the front door and threw it across the lobby, allegedly damaging it (**Allegation C: Discourtesy – Action, substantiated; Allegation D: Abuse of Authority – Property Damaged, unfounded**). Det. Michael Black of ESU said, "I don't give a fuck," and "I don't give a shit, man, let me see your hands," to § 87(2)(b) (**Allegation E: Discourtesy – Word, within NYPD guidelines**). Det. Black pulled § 87(2)(b) out of his bed, and Det. Terry Avent of ESU pushed § 87(2)(b)'s head against the floor (**Allegations F and G: Force – Physical Force, within NYPD guidelines**). Sgt. Conforti pulled § 87(2)(b) out of bed (**Allegation H: Force – Physical Force; within NYPD guidelines**) and allegedly restricted § 87(2)(b)'s breathing by kneeling on his neck and head (**Allegations I and J: Force – Chokehold, Restricted Breathing; unable to determine**). While struggling with § 87(2)(b) Sgt. Conforti yelled, "Nobody's on your neck, stupid! Turn over!" (**Allegation K: Discourtesy – Word, within NYPD guidelines**). After § 87(2)(b) and § 87(2)(b) were handcuffed, Det. Avent said, "Stop fucking complaining that you're a kid," "You and your brother were told, fucking multiple times, put your hands behind your back," "You're still running your mouth, you're not too smart," and, "I'm not your father, maybe your father does know what's wrong with you," to § 87(2)(b) (**Allegation L: Discourtesy – Word, substantiated**). Det. Seery picked up § 87(2)(b) Ring camera and threw the camera across the lobby toward § 87(2)(b) (**Allegation M: Discourtesy – Action, miscellaneous – subject retired**). Officers allegedly put § 87(2)(b)'s and § 87(2)(b)'s cell phones on airplane mode to prevent them from communicating with anyone outside the apartment (**Allegations N and O: Abuse of authority – Search of a recording device, unfounded**).

The investigation obtained Ring doorbell video footage (**BR02-03**, summarized at **BR04**), and BWC video footage (**BR05**, summarized at **BR06**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Jonathan Martinez entered § 87(2)(b) in Brooklyn.
Allegation (B) Abuse of Authority: Detective Jonathan Martinez searched § 87(2)(b) in Brooklyn.

On October 13, 2022, Det. Martinez obtained Kings County Supreme Court search warrant § 87(2)(b) which authorized officers to execute a no-knock search warrant at § 87(2)(b) in Brooklyn between 6:00 a.m. and 9:00 p.m. § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **within NYPD guidelines**.

Allegation (C) Discourtesy: Sergeant Daniel Conforti acted discourteously toward § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Daniel Conforti damaged § 87(2)(b)'s property.

Allegation (M) Discourtesy: Detective James Seery acted discourteously toward § 87(2)(b)

§ 87(2)(b) testified (**BR13**) that before entering the apartment, an officer carrying a shield threw the Ring camera, breaking its lens.

§ 87(2)(b) (**BR14**) and § 87(2)(b) (**BR 15**) stated that officers removed the Ring camera and threw it but did not break it.

The first Ring camera video (**BR02**) at 00:00 captures Sgt. Conforti grasping the camera, pulling it off the door, and tossing it to the floor before drilling into the door. A slowed clip of the same video (**BR48**) captures the camera bouncing down the stairs leading to the apartment and landing face-down on the lobby floor. Det. Seery's BWC video (**BR18**) at 04:11 captures the Ring video camera's position on the floor in the lobby next to its rear wall, approximately ten to fifteen feet from the apartment door. At 07:12 of Det. Seery's BWC, Det. Seery picks the Ring camera up in the lobby, then throws it down the hallway toward the door of § 87(2)(b). Det. Bucchiganano's BWC video (**BR19**) at 07:13 best captures this moment.

The second Ring doorbell camera video (**BR03**) at 00:00 captures Sgt. Patel and Det. Martinez picking up the camera inside the apartment, capturing themselves. They then turn it over, and a male voice says, "It's still on." The camera's video and audio recording are clear and appear to function normally.

Sgt. Conforti testified (**BR16**) that he removed a Ring camera and put it on the floor. Procedurally, officers remove doorbell cameras to prevent civilians inside from seeing officers, as these cameras can provide live video feed. Sgt. Conforti did not learn that he damaged the Ring camera and did not remember breaking it, but he did not inspect the camera after removing it from the door. Sgt. Conforti reviewed the first Ring camera video (**BR02**) from 00:00-00:06, then stated that the video captures him "putting" the camera on the ground, not throwing it.

Det. Seery testified (**BR17**) that Sgt. Conforti might have thrown the camera into the lobby so officers would not trip on it. He did not learn that Sgt. Conforti damaged the camera. At the end of the incident, Det. Seery threw the Ring camera towards the apartment because he did not want anyone to accuse the officers of stealing it. Det. Seery never learned that this damaged the camera.

Patrol Guide Procedure 200-02 states that officers must maintain a higher standard of integrity than is generally inspected of others and render their services with courtesy and civility (**BR47**).

BWC footage shows that Sgt. Conforti threw § 87(2)(b)'s Ring camera from the door to § 87(2)(b) through the hallway and into the building's lobby, and that Det. Seery picked up the camera in the lobby and threw it back at the door. Sgt. Conforti believed he "put" the camera on the floor and did not throw it, and Det. Seery said he threw the camera to avoid being accused of stealing it. § 87(2)(g)

§ 87(2)(g). Det. Seery retired from the NYPD on December 1, 2023 (BR54). It is therefore recommended that **Allegation C** be **substantiated** and that **Allegation M** be closed as **miscellaneous – subject retired**.

§ 87(2)(b) testified that Sgt. Conforti broke the Ring doorbell camera's lens when he threw it. § 87(2)(b) and § 87(2)(b) both testified that the officers did not break the camera. Ring doorbell footage captured after the ESU officers left shows no evidence of a cracked lens or damaged audio equipment. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unfounded**.

Allegation (E) Discourtesy: Detective Michael Black spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified (BR13) that an officer cursed at him in the bedroom, but he could not specify what the officer said. § 87(2)(b) later told him that an officer said, "I don't give a fuck," and "Shut the fuck up."

§ 87(2)(b) testified (BR14) that as officers approached him in the bedroom, an officer said, "Stop hesitating, get the fuck on the floor." Later, another officer told § 87(2)(b) "Get the fuck on the floor," and, "Shut the fuck up."

Det. Black's BWC video (BR20, runtime 02:26-03:10) at 02:26 captures Det. Black arriving at the doorway to the brothers' bedroom; he is the first officer in the apartment. Det. Black holds up his shield, points his pistol into the room, and says, "Let me see your hands! Let me see both your hands!" Det. Black points his pistol at both brothers and illuminates the area. At 02:36, Det. Black enters the bedroom, points his pistol at § 87(2)(b) and says, "Let me see your hands! Let me see both of your hands right now!" § 87(2)(b) shows his hands and repeatedly says that he is § 87(2)(b). Sgt. Conforti asks § 87(2)(b) his age. § 87(2)(b) and § 87(2)(b) say, simultaneously, "I'm § 87(2)(b)" and "I'm § 87(2)(b)" Det. Black says to § 87(2)(b) "I don't give a fuck." At 02:57, Det. Black says, "Let me see your hands," to § 87(2)(b) Det. Black then holsters his pistol, and the room goes dark. At 02:59, § 87(2)(b) says, "Why you putting handcuffs on me for?" Det. Black says, "It's a search warrant." § 87(2)(b) says, "For me? I'm § 87(2)(b)" The lights come back on, and Det. Black is grabbing § 87(2)(b)'s left hand and pulling it forward. Det. Black says, "I don't give a shit, man, let me see your hands!"

Det. Black testified (BR21) he said, "I don't give a shit" and "I don't give a fuck" to § 87(2)(b) because he was telling Det. Black his age, and Det. Black was not interested in this information. Det. Black did not hear an officer say, "Stop hesitating, get the fuck on the floor," "Get the fuck on the floor," or "Shut the fuck up," to § 87(2)(b)

While officers are generally prohibited from using profanities toward civilians, they may use profanities "in the context of a dynamic situation over which [they are] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian. DCT Disciplinary Case No. 2015-15012 (BR22).

Det. Black said, "I don't give a fuck" and "I don't give a shit, man, let me see your hands," to § 87(2)(b) seconds after entering while trying to secure the room and get § 87(2)(b) to show his hands. Det. Black was the first officer to enter the apartment during a no-knock search warrant § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **within NYPD guidelines**.

Allegation (F) Force: Detective Michael Black used physical force against § 87(2)(b)

Allegation (G) Force: Detective Terry Avent used physical force against § 87(2)(b)

Allegation (H) Force: Sergeant Daniel Conforti used physical force against § 87(2)(b)

Allegation (I) Force: Sergeant Daniel Conforti used a chokehold against § 87(2)(b)

Allegation (J) Force: Sergeant Daniel Conforti restricted § 87(2)(b) **s breathing.**

Allegation (K) Discourtesy: Sergeant Daniel Conforti spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified (**BR13**) that an officer entered the bedroom and pulled him from his bed to the floor by his left leg, then pulled his hands behind his back and tried to handcuff him. § 87(2)(b) moved his hands and body to prevent the officers from handcuffing him. Nearby, § 87(2)(b) struggled with officers on the floor, then said, “Get your knee off my neck! I have asthma!” § 87(2)(b) turned and saw Sgt. Conforti’s knee on § 87(2)(b) s neck for five to ten seconds. After Sgt. Conforti lifted his knee, § 87(2)(b) continued resisting arrest for approximately thirty to fifty seconds.

§ 87(2)(b) testified (**BR14**) that an officer grabbed and pulled his wrists and forearms while he lay in bed. § 87(2)(b) tensed up and pulled away but did not push the officer. The first officer and a second officer pulled him to the floor, and he tried to get up. The officers forced him to the floor by pushing him on his back, then began handcuffing him. § 87(2)(b) tensed and stiffened his arms. The first officer pushed his knee down on the side of § 87(2)(b) s neck with his full body weight, and on his neck behind his ear, for approximately seven seconds. The officer’s knee moved around, pressing on both his ear and neck area, and § 87(2)(b) noted that the knee was not fully on his neck. This officer also pushed § 87(2)(b) s back and arms and held him down on the floor and said, “Don’t resist.” § 87(2)(b) denied moving on the floor. The officer’s knee did not restrict § 87(2)(b) from breathing or cut off his air flow. § 87(2)(b) believed the officer intentionally pressed his knee against his neck to hurt him. The officer did not use a chokehold.

§ 87(2)(b) was not present for this portion of the incident and did not testify regarding these allegations.

§ 87(2)(b) described himself as a § 87(2)(b) § 87(2)(b) Black male (**BR49**).
§ 87(2)(b) described himself as a § 87(2)(b), § 87(2)(b) Black male (**BR50**).
The subject of the search warrant, § 87(2)(b) is described on the warrant as a § 87(2)(b) § 87(2)(b) Black male (**BR07**).

§ 87(2)(b) provided three photos (**BR51-53**) of § 87(2)(b) s neck injuries, which were allegedly caused when Sgt. Conforti knelt on his neck. These photos capture redness behind § 87(2)(b) s left ear and were captured October 19, 2022, at 9:17 a.m.

Det. Black’s BWC video (**BR20, runtime 02:58-03:35**), at 02:58 captures Det. Black grab § 87(2)(b) s left hand and say, Det. Black says, “I don’t give a shit, man, let me see your hands!” Det. Black puts his hand underneath the back of § 87(2)(b) s left armpit, bends his left arm behind his back, then pulls him out of the bed to the ground in a controlled, deliberate manner (this moment is also visible in Sgt. Conforti’s BWC video, see **BR24, runtime 03:01**). § 87(2)(b) lands on his feet and then lays on the floor with his torso and head partially raised off the

floor, supported by his arm. At 03:08 of Det. Black's BWC, Det. Avent puts his hand on the back of § 87(2)(b)'s neck, then pushes his head to the floor by pressing down on the back of his neck. Once § 87(2)(b)'s head is on the floor, Det. Avent presses his open palm against the right side of § 87(2)(b)'s head and presses it against the floor. Det. Fekety's BWC video (**BR23, runtime 03:01-03:07**) also captures Det. Avent pushing § 87(2)(b)'s head to the floor.

Sgt. Conforti's BWC video (**BR24, runtime 02:33-03:36**) at 02:33 captures Sgt. Conforti following Det. Black into the bedroom. He is the second officer in the room. At 03:02, Det. Black pulls § 87(2)(b) out of the bed. Sgt. Conforti stands with § 87(2)(b) who is in his bed. At 03:06, § 87(2)(b) begins to move around on the bed and yells, "He's only § 87(2)(b)." Sgt. Conforti tells him to relax and stay put. At 03:07, Sgt. Conforti grabs § 87(2)(b)'s left hand or forearm. § 87(2)(b) pulls his arm and body away and yells in protest. At 03:14, Sgt. Conforti puts his left hand on § 87(2)(b)'s right shoulder; they struggle briefly, and at 03:17, § 87(2)(b) says, "Why you on my neck?!" Sgt. Conforti's hands are not visible. Sgt. Conforti pulls § 87(2)(b) out of the bed and to the floor. § 87(2)(b) lays on the ground on his side and does not put his hands behind his back. At 03:20, Sgt. Conforti presses his gloved left hand against the side of § 87(2)(b)'s head (see BWC screenshot, **BR25**). After 03:21, § 87(2)(b)'s head is not visible. § 87(2)(b) says, "Yo, bro, you on my neck!" then, muffled, "You on my neck!" then, normally, "You on my neck! You on my neck!" Sgt. Conforti yells, "Nobody's on your neck, stupid! Turn over!" At 03:24, Det. Avent removes the duvet wrapped around § 87(2)(b). Sgt. Conforti and Det. Avent then grab § 87(2)(b)'s left wrist and bends his wrist and arm behind his back. At 03:30, officers turn § 87(2)(b) onto his stomach, where he lays face-down in front of Sgt. Conforti. The back of his neck is visible, but his head is obscured (see BWC screenshot, **BR26**). § 87(2)(b) yells, and his voice is muffled. § 87(2)(b) yells repeatedly, in the background, "He's got asthma!" § 87(2)(b) yells out, then says in a muffled voice, "Bro, I've got asthma! Get the fuck off," then yells out in a muffled voice. At 03:35, Sgt. Conforti holds the back of § 87(2)(b)'s head at the base, where it meets the neck, with his left hand. His thumb is on the right side of the neck, and the rest of his fingers are not visible (see BWC screenshot, **BR27**). § 87(2)(b) yells twice, in a muffled voice, "He kneeling me on my mouth!" An officer says, "Nobody kneed you!" Det. Avent and Det. Sikiric begin handcuffing § 87(2)(b). At 03:43, § 87(2)(b) starts crying and says, "Get the fuck off me, bro! I can't breathe, I've got asthma!" At 03:49, § 87(2)(b) is fully cuffed and Sgt. Conforti stands up.

Det. Black's BWC video (**BR20, runtime 03:20-03:30**) at 03:20 captures § 87(2)(b) yelling, "Yo, why you on my neck?!" Sgt. Conforti pulls § 87(2)(b) from the bed to the floor, where he lands on his stomach with his hands outstretched and his head turned to the left towards Det. Black. He is wrapped in a duvet, and his head rests on a pillow. At 03:24, Sgt. Conforti kneels and presses his left knee on the left side of § 87(2)(b)'s forehead. Det. Sikiric's BWC video (**BR28, runtime 03:18-03:25**) at 03:18 also captures Sgt. Conforti kneeling near § 87(2)(b)'s head, then lifting his left knee. At 03:21 in Det. Sikiric's video, Sgt. Conforti's left hand presses against the side of § 87(2)(b)'s head (see BWC screenshot, **BR29**). At 03:32, Sgt. Conforti's left hand is against the back of § 87(2)(b)'s head (see BWC screenshot, **BR30**). At 03:35, Sgt. Conforti's hands are both pressed against the back of § 87(2)(b)'s neck. The base of the palm is against the base of § 87(2)(b)'s head, the thumbs extend straight down the back of his neck, and the right hand's fingers are pressed against his head, then move against his neck (see BWC screenshots, **BR31-33**). At 03:46 and 03:50, his hands are still in this position.

Det. Black testified that he began handcuffing § 87(2)(b) but could only cuff one of his

arms because § 87(2)(b) would not give up his other arm. He struggled with § 87(2)(b) to get his other arm, then pulled § 87(2)(b) out of his bed. Det. Black did this because civilians frequently hide guns in their beds, and he wanted to prevent § 87(2)(b) from reaching any potential hidden weapons. Once § 87(2)(b) was on the floor, he continued struggling with officers on the floor and would not give the officers his other arm. Another officer helped Det. Black overcome § 87(2)(b)'s resistance and handcuff him, but he could not identify this officer. After a few seconds, Det. Black was able to pull § 87(2)(b)'s second arm out, put it behind his back, and handcuff him.

Det. Avent testified (**BR35**) that § 87(2)(b) and § 87(2)(b) were not compliant, but he did not independently remember what he did to handcuff the civilians. Det. Avent reviewed Det. Fekety's BWC video (**BR23**) from 03:00 – 03:07, then stated that it captures him pushing § 87(2)(b) to the ground by his upper back, specifically the cervical spine and trapezius muscle area where the neck meets the head. Det. Avent did this because § 87(2)(b) was pushing his body up with his elbow to resist being cuffed. Det. Avent also reviewed Det. Black's BWC video (**BR20**) from 03:05 – 04:00, then stated that at 03:13, his hand is on § 87(2)(b)'s head. The investigation played the video slowly three times, noting that Det. Avent's hand appears to be on the back of § 87(2)(b)'s neck. Det. Avent stated that his hand started on § 87(2)(b)'s trapezius muscle, at the top of his back below his neck, then ended up on § 87(2)(b)'s head. Det. Avent did not grab § 87(2)(b) by the neck, and noted that his open hand, with all five fingers visible, can be seen pressing § 87(2)(b)'s head to the ground after it meets the floor. Det. Avent pressed his hand against § 87(2)(b)'s head to keep him from getting up, noting that the head is the easiest way to control the body.

Sgt. Conforti testified that he approached § 87(2)(b) and grabbed his hands, and then heard a commotion as § 87(2)(b) began resisting. § 87(2)(b) tensed up his body, then began trying to force his way towards the commotion. Sgt. Conforti believed § 87(2)(b) was trying to get up to help his brother. Sgt. Conforti pulled § 87(2)(b) to the floor and held him down by his arm. § 87(2)(b) flailed his arms and tried to get up, but he did not push or hit any officers. Another officer handcuffed § 87(2)(b) which took approximately thirty seconds to a minute. Sgt. Conforti denied pushing his knee against § 87(2)(b)'s head, neck, ear, or upper shoulders, and noted that he does not generally do this. Sgt. Conforti did not restrict § 87(2)(b)'s airflow or breathing. Sgt. Conforti did not place his hands around § 87(2)(b)'s neck and did not see any other officer do this. Sgt. Conforti reviewed Det. Black's BWC video (**BR20**) from 03:19 to 03:24, then stated that he did not see his knee making contact with § 87(2)(b)'s head, and that if it did, it was unintentional. Sgt. Conforti reviewed Det. Sikiric's BWC video (**BR28**) from 03:39-3:40, then stated that this portion of the video captures him trying to get § 87(2)(b) under control by pressing his hands down on the back of § 87(2)(b)'s head. When asked if his hands were on § 87(2)(b)'s neck, Sgt. Conforti said that he could not see his hands' exact position. Sgt. Conforti reviewed a screenshot of Det. Sikiric's BWC video (**BR30**), in which Sgt. Conforti's hands appear to be wrapped around the back of § 87(2)(b)'s neck. Sgt. Conforti could not explain why he was doing this, did not recall doing this, and could not explain what was happening in the still image, but noted that his hands possibly slid down after being on § 87(2)(b)'s head. Sgt. Conforti reviewed a second screenshot of Det. Sikiric's BWC video (**BR31**), then stated that the photo captures his hands on § 87(2)(b)'s head. Sgt. Conforti reviewed his own BWC video (**BR24**) from 02:54 to 03:21, then from 03:21 to 03:36. Between 03:19 and 03:21, § 87(2)(b) says, "You're on my neck." Sgt. Conforti did not believe that he was on § 87(2)(b)'s neck at this point. At 03:36, § 87(2)(b)'s voice becomes muffled. Sgt. Conforti could not say why this happened. Sgt. Conforti never hit § 87(2)(b) with his knee. Sgt. Conforti did not believe that § 87(2)(b) could not breathe at any point during this incident because he did not stop speaking,

noting that, “If you can’t breathe, you cannot speak.”

Det. Seery testified that he did not see any officer use physical force against the civilians during this incident. Det. Seery did not learn that Sgt. Conforti restricted § 87(2)(b) s breathing in any way and did not see an officer kneeling on his neck. Det. Black testified that he did not see officers do anything to restrict § 87(2)(b) s breathing and did not learn that this happened.

Officers may use force when it is reasonable to place a person in custody or to prevent escape from custody. Officers’ use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject’s voluntary compliance, must be prioritized. Officers shall “apply no more than the reasonable force necessary to gain control.” Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject’s violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic that would affect pain tolerance or increase likelihood of violence. Patrol Guide Procedure 221-01 (BR36).

§ 87(2)(b) testified that Det. Black pulled him to the floor by his leg and began cuffing him, and that he moved his body to avoid being handcuffed. Det. Black testified that § 87(2)(b) would not give up his other arm, that he struggled with § 87(2)(b) to control his arm, and that he pulled § 87(2)(b) out of his bed to prevent him from using any hidden weapons. Det. Avent testified that he pushed the back of § 87(2)(b) s neck to force his head against the ground, then pressed his head against the ground, to help Det. Black overcome § 87(2)(b) s resistance. The officers were executing a no-knock search warrant § 87(2)(b) when they entered the dark bedroom and encountered two individuals whose appearances both matched the search warrant’s physical description of its subject, § 87(2)(b). Video shows that Det. Black began handcuffing § 87(2)(b) who did not immediately put his other hand behind his back, then pulled § 87(2)(b) to the floor almost immediately using controlled and deliberate motions. § 87(2)(b) was then on the floor, with his torso propped up on his arm, and was not giving officers his arm to be handcuffed. § 87(2)(g) § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

it is recommended that **Allegations F and G** be closed as **within NYPD guidelines**.

§ 87(2)(b) testified that an officer grabbed and pulled his wrists and forearms while he lay in bed, that he tensed up and pulled away, and that two officers then pulled him to the floor. Sgt. Conforti testified that he grabbed § 87(2)(b) s hands, and § 87(2)(b) tensed up and tried to stand up when § 87(2)(b) began resisting arrest, leading Sgt. Conforti to believe that § 87(2)(b) was moving to help his brother. Sgt. Conforti pulled § 87(2)(b) to the floor and held him while he flailed his arms and tried to stand up. § 87(2)(g)

§ 87(2)(b)

it is recommended that **Allegation H** be closed as **within NYPD guidelines**.

Patrol Guide Procedure 221-01 (BR36) defines a chokehold as “any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow,”

and it states that members of service “SHALL NOT” use a chokehold.

§ 87(2)(b) alleged that an officer kneeled on his neck and head, but that this did not restrict his breathing and that the knee was not fully on his neck. § 87(2)(b) alleged that he saw an officer kneel on § 87(2)(b)'s neck, restricting his breathing. Photos capturing § 87(2)(b)'s alleged injuries from the officer's knee show redness behind his ear, on his head. BWC video captures Sgt. Conforti kneeling on § 87(2)(b)'s head and holding his neck from the back. Sgt. Conforti denied restricting § 87(2)(b)'s breathing or pushing his knee against § 87(2)(b)'s head, neck, ear, or upper shoulders. He denied seeing himself kneel on § 87(2)(b)'s head in Det. Black's video footage. Det. Black and Det. Seery both denied seeing an officer restrict § 87(2)(b)'s breathing or learning that this happened. § 87(2)(g)

§ 87(2)(b)

it is recommended that **Allegations I and J** be closed as **unable to determine**.

While officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian. DCT Disciplinary Case No. 2015-15012 (BR22).

§ 87(2)(g)

Therefore, it is recommended that **Allegation K** be closed as **within NYPD guidelines**.

Allegation (L) Discourtesy: Detective Terry Avent spoke discourteously to § 87(2)(b)

Det. Avent's BWC video (**BR37, runtime 03:50-06:45**) at 03:50 captures § 87(2)(b) telling officers to call his mother. Both § 87(2)(b) and § 87(2)(b) are handcuffed. Det. Avent says, “Why don't you shut your mouth and listen? Then stop fucking complaining that you're a kid.” At 04:04, Det. Avent says, “And you're not listening. You and your brother were told, fucking multiple times, put your hands behind your back.” At 04:22, § 87(2)(b) says, “I go to school, I'm on the fucking honor roll!” Det. Avent says, “Good for you!” § 87(2)(b) says, “I'm smart!” Det. Avent says, “Good for you!” § 87(2)(b) says, “Y'all bust in my house! I'm not retarded!” Det. Avent says, “You're still running your mouth, you're not too smart. You're not too smart.” § 87(2)(b) and the officers continue to argue. At 06:24, Det. Avent says, “He don't listen, that's his problem.” § 87(2)(b) says, “You don't know what my problem is.” Det. Avent says, “I don't, I'm not your father.” § 87(2)(b) says, “You ain't raise me, nigger.” Det. Avent says, “I'm not your father, maybe your father does know what's wrong with you.”

Neither § 87(2)(b) nor § 87(2)(b) testified to any officer making any such remarks.

Det. Avent testified that officers are trained to curse at noncompliant civilians to get their point across, but should not curse to demean or disrespect civilians. Det. Avent received this training during his NYPD academy training in 2023. He was also trained in the use of curse words during a multi-day, “Verbal Judo” de-escalation course called “Street Language” at the NYPD academy in 2020 or 2021. Det. Avent cursed at civilians to get his point across during this incident to gain compliance, but he did not remember what he said. Det. Avent did not independently remember saying, “Stop fucking complaining that you're a kid,” “You and your brother were told fucking

multiple times to put your hands behind your back,” “You’re still running your mouth, you’re not too smart,” or “I’m not your father, maybe your father knows what’s wrong with you.” Det. Avent reviewed the portions of his BWC video (**BR37, runtime 03:50-04:11, 04:20-05:30, 06:25-06:45**) capturing these statements. Det. Avent then stated that he used the word “fucking” to get his point across. Det. Avent testified that he said, “You’re not too smart,” twice to § 87(2)(b) because, “He kept claiming he was on the honor roll. He just didn’t sound too smart. He’s cursing, he’s screaming, he’s yelling. He wants to basically tell me about his education, and he didn’t sound too smart there.” The investigation asked Det. Avent the purpose of this statement. Det. Avent said, “Just to let him know he didn’t sound too smart.” Det. Avent testified that he told § 87(2)(b) “I don’t know what your problem is, I’m not your father. Maybe your father does know what’s wrong with you,” because § 87(2)(b) complained that Det. Avent did not know what his problem was and told Det. Avent, “You didn’t raise me, nigger.” Det. Avent said this to confirm that he did not raise § 87(2)(b) and that “maybe his dad does know” what is wrong with him. Det. Avent’s reason for saying this was to respond to § 87(2)(b). He was not attempting to gain compliance by making this statement.

While officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian. DCT Disciplinary Case No. 2015-15012 (BR22).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
Therefore, it is recommended that **Allegation L** be closed as **substantiated**.

Allegation (N) Abuse of Authority: An officer searched § 87(2)(b) s recording device.
Allegation (O) Abuse of Authority: An officer searched § 87(2)(b) s recording device.

§ 87(2)(b) testified that he and § 87(2)(b) realized that their phones were on airplane mode at the end of the incident. § 87(2)(b) did not put his phone on airplane mode when he went to sleep. He believes officers put the brothers’ phones on airplane mode while searching the apartment to prevent anyone from contacting them. § 87(2)(b) did not see officers do this, but while officers searched his bedroom, his phone was in the room. § 87(2)(b) was not in his room during the search because officers moved him and § 87(2)(b) into the living room during the search. § 87(2)(b) s iPhone 10 can be placed on airplane mode without entering a password.

§ 87(2)(b) testified that he did not remember officers putting his or § 87(2)(b) s phones on airplane mode.

None of the ESU officers’ BWC videos capture them touching or using any civilian’s cell phones. Det. Martinez, Detective Matthew Fagan, and Sergeant Avinash Patel of INT FIO handle the brothers’ phones. Det. Martinez’s BWC video (**BR38, 08:27-13:15**) captures Det. Martinez searching the bedroom and apartment. At 08:27, Det. Martinez removes a phone from § 87(2)(b) s bed and places it on § 87(2)(b) s bed. At 10:51, Det. Martinez moves the phone to § 87(2)(b) s bed. At 11:00, Det. Martinez moves a second phone from § 87(2)(b) s bed to § 87(2)(b) s bed. At 11:30, Det. Martinez takes both phones and a laptop off § 87(2)(b) s bed and places them on a windowsill. At 12:57, Det. Fagan places both

- **202202206** involved a substantiated allegation of offensive language – other against Det. Avent. The Board recommended charges and the NYPD has not yet imposed discipline.

- § 87(2)(g)

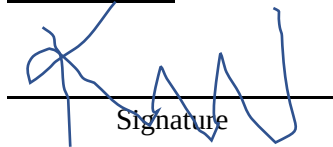
Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 31, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR43**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 13

Investigator:


Signature

INV Katherine White

Print Title & Name

11/29/2023

Date

Squad Leader: JP Lozada

Signature

IM Jean-Paul Lozada

Print Title & Name

12/06/2023

Date

Reviewer:

Signature

Print Title & Name

Date